



University of St.Gallen

Introduction to Constitutional Law and Public International Law

Exercise 2: Distribution of Competencies

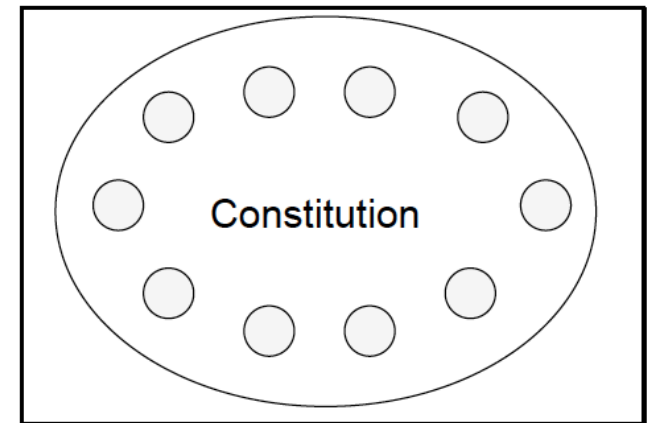
Dr. Gentiana Imeri, 6 March 2026

Agenda

- Theory
- Exercises

Structural Principles of the Constitution

- Principle of *Rechtsstaat*
- Principle of democracy
- Principle of social justice
- Principle of federalism
 - Balance between unity and diversity
 - Federal shared rule and self-rule of the constituent parts
 - Participation in the decision-making process of the federal government
 - Autonomy (self-rule) in specific fields



Structural Principles of the Constitution

- Principle of subsidiarity (federalism)
 - State organization: The state should be composed of different state levels
 - Default rule: The smaller unit should be autonomous and responsible for its own rule, unless
 - The smaller unit has no capacity/resources to act autonomously
 - The matter requires uniform regulation
 - Legal provisions in the constitution
 - art. 5a Cst
 - art. 43a para. 1 Cst

The Federal State

- Switzerland is a federal state
- Federalist elements in the Swiss constitution
 - Constitution provides a mixture of self-rule and shared rule of different federal entities
 - Powers are vertically distributed between the federation and the cantons (art. 3, 43a, 54 – 125 Cst)
 - Cantons have their own competencies in their sphere of autonomy (art. 47 Cst)
 - Cantons participate in the decision-making process on the federal level (art. 140-142 Cst, art. 195 Cst)
- Other federalist states?

Three Levels of Government

- Federation
 - Designation of tasks defined in art. 42 Cst, art. 3 Cst
 - E.g. powers in foreign and security policy, customs and financial matters, national defense
- Cantons
 - Designation of tasks defined in art. 3 Cst
- Communes (Municipalities)
 - art. 50 Cst

Distribution of Competencies

- Federal competencies are listed **explicitly**, while the cantons retain the residual powers (art. 3, art. 42 Cst)
- Other methods of distributing legislative power in federal state constitution between the federal level and the constituent units?

Distribution of Competencies

- **Extent (scope)** of the federal competency
 - Comprehensive competency
 - Fragmentary competency
 - Framework competency
 - Promotion competency

Distribution of Competencies

- **Extent (scope) of the federal competency**
 - Comprehensive competency: Federation shall enact any legal regulation for any matter that falls within a particular field
 - “federal matter”
 - Federation “shall legislate”, “shall ensure” legislation
 - Federation “shall take measures”, “has exclusive right” to regulate a particular field
 - E.g. Monetary policy (art. 99 Cst), economic policy (art. 100 Cst), road transport (art. 82 Cst.)

Distribution of Competencies

- **Extent (scope) of the federal competency**
 - Fragmentary competency: limited in scope, i.e. the Federation is authorized to regulate a certain part or aspect of a particular subject matter
 - E.g. health protection (art. 118 para. 2 Cst), direct taxes (art. 128 Cst), value added tax (art. 130 Cst), special consumption taxes (art. 131 Cst)

Distribution of Competencies

- **Extent (scope)** of the federal competency
 - Framework competency: federal competencies are restricted to passing a skeletal law or basic principles, leaving cantons with enough leeway for detailed regulation tailored to their special needs
 - “Federation shall lay down principles...”
 - E.g. spatial planning (art. 75 Cst), tax harmonization (art. 129 Cst)

Distribution of Competencies

- **Extent (scope)** of the federal competency
 - Promotion competency: the Federation “supports” and “encourages” efforts in areas for which cantons are primarily responsible
 - E.g. protection of natural and cultural heritage (art. 78 Cst)

Distribution of Competencies

- **Effect** of the competency on the cantonal jurisdiction
 - Subsequently derogating effect
 - Originally derogating effect
 - Parallel effect

Distribution of Competencies

- **Effect** of the competency on the cantonal jurisdiction
 - Subsequently derogating effect: The cantons have authority to legislate as long and as far as the Federation does not make use of its competency. Cantonal laws remain applicable in areas not covered by federal rules.
 - Cantonal competency is cancelled once the Federation makes use of its competency.
 - General rule in Swiss constitutional law
 - Examples: e.g. fishing and hunting (art. 79), civil law (art. 122 Cst)

Distribution of Competencies

- **Effect** of the competency on the cantonal jurisdiction
 - Originally derogating effect: From the moment a federal competency is established in the Cst, the cantons have no jurisdiction in this respective area, there is no room for cantonal legislation
 - Examples: Armed forces organization, training and equipment (art. 60 Cst), postal and telecommunication services (art. 92 Cst)

Distribution of Competencies

- **Effect** of the competency on the cantonal jurisdiction
 - Parallel effect: Federation and the cantons act simultaneously and independently from each other in a particular area
 - Examples: Universities (art. 63a Cst), cinema (art. 71 Cst)

Exercises: Case 1

Ms. X and Mr. Y are married and have three children. They live together in the Canton of Fribourg. Ms. X works part time as a teacher in a school in Fribourg. Her husband also works part time as a teacher but in the Canton of Solothurn. In September 2016, Ms. X applied for child allowances in the Canton of Fribourg. The cantonal authorities rejected her application. They argued that based on art. 8 para. 1 of the cantonal law on family income supplements of September 26, 1990, only Mr. Y as the father is entitled to child allowances and must apply for it in the Canton of Solothurn. Ms. X and Mr. Y feel that they have been treated unfairly, in particular because the amount of the child allowances paid in the Canton of Fribourg is higher than in the Canton of Solothurn. They want you to examine their legal situation. In particular, they want you to answer the questions below.

Cantonal law on family income supplements of September 26, 1990

Art. 8 Concurring claim

¹ If both parents, the mother and the father, are gainfully employed, it is the father who receives the family allowance.

[...]

Exercises: Case 1

Question 1: Give two examples for federal competencies in social matters.

Exercises: Case 1

Question 2: Is there a federal competency to regulate child allowances? If there is one, describe and explain the **extent** and **effect** of the federal competency on the cantonal jurisdiction. Provide reference to the relevant provisions.

Exercises: Case 2

A recent study has found that 80% of all garbage that is floating in the oceans around the world amounts to single-use plastic. This large amount of plastic is highly detrimental to the ecosystem in the ocean and causes damage to the environment. In Switzerland, the consumption of plastic packaging is three times as high as in other European countries: On average, every Swiss person produces 125 kg of single-use plastic per year – in 2010, 1 million tons were used. Some members of the Federal Assembly see an urgent need for action. In order to protect the environment, they intend to declare a total ban on single-use plastic in order to reduce the plastic production in Switzerland by at least 50%.

Exercises: Case 2

Question 1: Do the federal authorities have the competency to introduce a federal provision on the ban on single-use plastic? If so, describe the **extent** and **effect** of the federal competency with regards to the cantonal law. Explain your answer with respect to the relevant provisions.

Exercises: Case 2

Question 2: Assume that there is a competency on the federal level to introduce a ban on single-use plastic. Since the reduction of plastic consumption also constitutes a key political goal on global level, some cantons have already adopted measures to lower plastic production and use. For example, the cantonal law of Lucerne provides that retailers are not allowed to provide single-use plastic bags unless they charge CHF 1.50 per bag. The cantonal government wants to know what happens to the cantonal statute once the federal provision banning single-use plastic enters into force. Explain your answer with reference to the relevant provisions.

Exercises: Case 3

In some urban centers in Switzerland, such as Zurich or Geneva, there has been a housing shortage in recent years. In particular, there is not enough affordable housing space to accommodate young families with low income. In April 2018, a group of activists decided to squat a house right in the middle of Bern to point to this deplorable situation for families. The activists entered a vacant house that was not used by the proprietor at the moment and announced that they would stay there until the Federal Assembly would react. As a consequence, National Councillor X. intends to start a petition for a federal statute with the purpose to guarantee affordable apartments for families by reducing their housing costs.

Exercises: Case 3

Question 1: National Councillor X. wants to know if there is a federal competency in the Federal Constitution that would allow for such a federal statute? Explain your answer with reference to the relevant provisions.

Exercises: Case 3

Question 2: Assume that there is a federal competency for a federal statute guaranteeing affordable apartments for families by reducing their housing costs. However, the members of the Federal Assembly may take years to agree on the specific content of such a statute. Therefore, the government of the Canton of Zurich decides to enact its own cantonal statute on affordable accommodations for families. The government of the Canton of Zurich wants to know whether this is possible and what happens to the cantonal statute if a federal statute on affordable apartments for families by reducing their housing costs will enter into force in some years. Explain your answer with reference to the relevant provisions.

Exercises: Case 4

A is a member of the Federal Assembly. He wants to pass a new federal statute banning the import of animal products because he believes that in the case of imported goods, it cannot be guaranteed that the animals will enjoy protection that meets Swiss standards during their lifetime. The exclusive allowance of Swiss animal products can guarantee that the animals are kept in an appropriate manner.

Question 1: Does the Federation possess the authority to pass a federal statute containing such a ban? If so, define the **extent** and **effect** of the federal competency.

Exercises: Case 4

Assume that the Federation has the competency to pass this federal statute. Although the discussions in the Federal Assembly come to a standstill as A cannot convince the majority of his idea, B, a Swiss citizen living in St.Gallen, is not happy with the current situation. The discussions concerning this import ban led him to realize that the Federation has many competencies, which he thinks would be better left to the cantons.

Question 2: B comes to you with this concern and wants to know how the legislative competencies are distributed in Switzerland in general. Explain your answer with respect to the relevant provisions.

Exercises: Case 4

Assume that the Federation has the competency to pass this federal statute. Although the discussions in the Federal Assembly come to a standstill as A cannot convince the majority of his idea, B, a Swiss citizen living in St.Gallen, is not happy with the current situation. The discussions concerning this import ban led him to realize that the Federation has many competencies, which he thinks would be better left to the cantons.

Question 3: B would also like to know how the competencies can be transferred back to the cantons.

Exercises: Case 4

B listens to your explanations but finds your solutions to be too complicated and time consuming. He suggests to amend the cantonal constitution of St.Gallen with a provision stating that the Canton of St.Gallen possesses the competency to legislate on the import of animals and animal products.

Question 4: What do you think of this idea from a legal perspective?